



Republic of the Philippines
Province of Surigao del Sur
MUNICIPALITY OF CARMEN

POSTED:
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BY: *MA. JULINA B. JUTILO*
SB SECRETARY

TANGGAPAN NG SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 87TH REGULAR SESSION OF THE 13TH SANGGUNIANG BAYAN
OF CARMEN, SURIGAO DEL SUR HELD AT THE MUNICIPAL SESSION HALL ON JULY 16, 2024

PRESENT:

Hon. Harvey S. Manawatao Municipal Vice-Mayor/
Presiding Officer

REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Carlos S. Estrada		SB Member
Hon. Nilo S. Bigno		SB Member
Hon. Rencio P. Valeroso		SB Member
Hon. Renato A. Calañas		SB Member
Hon. Michael C. Escuyos		SB Member
Hon. Carmelito E. Valeroso		SB Member
Hon. Elvie U. Ohao		SB Member



EX-OFFICIO MEMBERS:

Hon. Blandena V. Sugian		ABC President
Hon. Jeff Anthony D. Beloria		SK Federation President

ON LEAVE:

REGULAR SANGGUNIANG BAYAN MEMBER:

Hon. Tanie A. Quillano		SB Member
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SECTORAL REPRESENTATIVE:

Hon. Ricardo S. Iligan		IP Mandatory Representative
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ORDINANCE NO. 08
Series of 2024

**"AN ORDINANCE IMPOSING FEES IN PUBLIC COMFORT ROOMS IN NEW CARMEN PUBLIC MARKET
IN THE MUNICIPALITY OF CARMEN, PROVINCE OF SURIGAO DEL SUR"**

Author : Hon. Carmelito E. Valeroso

Enacted: All Members present

EXPLANATORY NOTE

The Municipality of Carmen, Province of Surigao del Sur, in recognizing the increasing number of market-goers and visitors to the new Carmen Public Market, it is the Municipal Government's goal to provide clean comfort rooms to complete its physical capabilities and improved the service facilities for public welfare.

[Handwritten signatures]

The Local Government Units may fix the rate for the operation of public utilities owned, operated and maintained as stated in one of the specific provisions of the Local Government Code of 1991.

As additional source of income for the Local Government Unit of Carmen while providing job opportunities for the maintenance of the sanitary condition of the comfort rooms and with the enactment of this ordinance by the Sangguniang Bayan, the prescribed fees and charges including the management, rules and regulations pertinent thereto shall be certainly expressed.

BE IT ORDAINED, by the Sangguniang Bayan of Carmen, Surigao del Sur, in a session assembled, that:

SECTION 1. Title- This ordinance shall be known as “An Ordinance Imposing Fees in Public Comfort Rooms in Carmen New Public Market in the Municipality of Carmen, Province of Surigao del Sur.

SECTION 2. Purpose- To ensure the cleanliness of public rest/comfort rooms and create sources of revenue to defray some of the expenses.

- SECTION 3. Definition of Terms-** as used in this ordinance the following terms shall mean:
- 1) Public rest/ comfort room – refers to a room in a building containing one or more toilets and urinals that is available for use by the general public or by customers or employees commonly separated into male and female facilities.
 - 2) Senior Citizens – refer to elderly resident citizens of the Republic of the Philippines at least sixty (60) years old and above.
 - 3) Persons with Disabilities – refer to those individuals suffering from restrictions of different abilities as a result of a mental, physical or sensory impairment to perform an activity in the manner or within the range considered normal for a human being.

SECTION 4. Imposition of Fees- There shall be fees and charges to be collected for the use of rest/comfort rooms in Carmen New Public Market as follows:

URINATE/IHI	-	Five Pesos (Php 5.00) Two Pesos (Php2.00)- students provided that a school ID's must be presented
DEFECATE/LIBANG	-	Ten Pesos (Php10.00) Five Pesos (Php5.00)- students provided that a school ID's must be presented
BATH/LIGO	-	Twenty Pesos (Php20.00)

SECTION 5. Exemption- All Economic Enterprises operated and managed by the Municipal Government of Carmen, Surigao del Sur are hereby mandated to allow with priority and not to charge any fee to Senior Citizens and Persons with Disabilities in using rest/comfort room in Carmen New Public Market.



SECTION 6. Requirement for availing the exemptions- The following must be presented to exempt the fees:

- 1) Senior Citizens- may inform the in-charge/attendant that they wish to use the toilet and present their ID and shall be exempted from fees.
- 2) Persons with Disabilities- a physically impaired PWD may inform the in-charge/attendant that they wish to use the toilet.
- 3) Pregnant Women- may inform the in-charge/attendant that they wish to use the toilet and shall be exempted from fees.
- 4) Owner/Employees of the Establishments in Carmen New Public Market- shall be exempted from fees upon presentation of their owner/employees ID.

SECTION 7. Payment- The fee imposed herein shall be paid through the issuance of cash tickets/arkabala which will be collected by the deputized collector who is under the supervision of the Market Supervisor.

SECTION 8. Signage- The above-mentioned rest/comfort rooms charging fees for their use shall post signages to be placed at the main entrance thereof stating that Senior Citizens, Persons with Disabilities, pregnant women and stall owners and employees are free of charge.

SECTION 9. Administrative Provisions- The implementation of this regulation shall have the following administrative provisions:

- 1) Management and Maintenance- the rest/comfort rooms shall be operated and maintained by the assigned utility worker/job order who is under the supervision of the Market Supervisor.
- 2) The Deputized Utility Worker/Job Order will secure receipt to the Municipal Treasurer's Office and shall maintain the sanitary condition of the rest/comfort rooms at all times. He/ She shall collect the necessary fees, entering them in the drop box which shall be remitted daily to the Treasurer's Office.
- 3) The assigned employee of the Treasurer's Office shall maintain a separate ledger of incoming collections generated from the operation of Carmen New Public Market rest/comfort rooms.
- 4) Implementing Rules and Regulations shall be promulgated by the Municipal Mayor in coordination with the Municipal Economic Enterprise which are necessary to implement this ordinance.

SECTION 10. Funding Requirements- expenses for the installation of signages and for the general implementation of this ordinance shall be taken from the Office of the Municipal Mayor.

SECTION 11. Repealing Clause- all existing ordinances, resolutions, motions, or parts thereof not consistent herewith are hereby repealed, amended or modified accordingly.



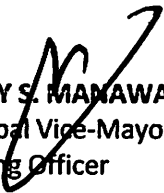
SECTION 12. Effectivity Clause- This Ordinance shall take effect Fifteen (15) days following the completion of its posting within the vicinity of the Local Government Unit of Carmen, Surigao del Sur.

ENACTED this 16th day of July, 2024 at Carmen, Surigao del Sur.

I HEREBY ATTEST to the correctness of the foregoing ordinance.


MA. JULINA T. BORDA- JUTILO, LLB., J.D.
Secretary to the Sangguniang Bayan

CERTIFIED CORRECT:


HARVEY S. MANAWATAO
Municipal Vice-Mayor/
Presiding Officer

APPROVED:


JANE V. PLAZA
Municipal Mayor